

Overview and Legal Requirements for Development Impact Fee Reporting

This report is intended to fulfill the annual requirements set forth in the Mitigation Fee Act (Government Code Section 66000 et seq.) with respect to the City of Fremont's Development Impact Fees (DIF). The City has five Development Impact Fees:

- Parkland Fee
- Park Facilities Fee
- Traffic Facilities Fee
- Fire Facilities Fee
- Capital Facilities Fee

The City has established separate funds for each of these five fees. When a developer pays a development impact fee, the payment is credited to the appropriate fund. Interest earned on the money in a fund is credited to that fund. Each fund is available only for the purpose for which its associated development impact fee was charged, and expenditures cannot be made from a fund for any other purpose.

For each development impact fee fund, the following information is provided in this Report:

A. Annual Reporting Information (Required by Gov't Code Sec. 66006)

(This information is provided for the fiscal year beginning 7/1/20 and ending 6/30/21)

1. A brief description of the type of fee in the fund.
2. The rate of the fee.
3. The beginning and ending balance in the fund for the fiscal year.
4. The amount of fees collected, and interest earned during the fiscal year.
5. An identification of each public improvement on which fees were expended during the fiscal year and the amount of the expenditures on each improvement, including the total percentage of the cost of the public improvement that was funded with fees.
6. If both (i) sufficient funds have been collected to complete financing on an incomplete public improvement that was identified at the time the fee was imposed and (ii) the public improvement remains incomplete, an identification of an approximate date by which the construction of the public improvement will commence.
7. A description of each interfund transfer or loan made from the account or fund, including the public improvement on which the transferred or loaned fees will be expended, and, in the case of an interfund loan, the date on which the loan will be repaid, and the rate of interest that the account or funds will receive on the loan.

Note that, during Fiscal Year 2020/2021, no refunds pursuant to Government Code Section 66001(e) or allocations pursuant to Government Code Section 66001(f) were made in connection with any of the DIF accounts.

All projections regarding future use of City funds for public improvements are made with reference to the most recent Capital Improvement Program of the City adopted by the City Council on June 15, 2021, as amended and updated from time to time.

All fees are administered pursuant to Chapter 18.290 of the Fremont Municipal Code.